[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

LAST WILL AND TESTAMENT

(Formal Printed Open Will under Section 333 of Goa Act 23 of 2016)

I, DR. JOSEPH PATRICK D'SOUZA-FERNANDES, son of Antonio Fernandes and Maria D'Souza, aged about sixty two years (born on the fifteenth day of May nineteen hundred and sixty four), by occupation a Medical Doctor (Retired), of married marital status, residing at House No. 45/A, Borda, Margao, Goa 403601, an Indian citizen, being a person governed in matters of succession by the Goa Succession, Special Notaries and Inventory Proceeding Act, 2012 (Goa Act 23 of 2016) pursuant to Section 1(4) thereof, being of sound disposing mind, memory, and understanding, and acting of my own free choice, volition, and without any coercion, undue influence, or fraud, do hereby make, publish, and declare this writing to be my Last Will and Testament, executed for presentation before the Special Notary under Section 333 of the said Act in the presence of two creditworthy witnesses.

SECTION I: REVOCATION OF ALL FORMER WILLS AND CODICILS

I hereby revoke, cancel, and annul all prior Wills, Codicils, testaments, and dispositions of every nature whatsoever made by me at any time heretofore, and declare this instrument to be my sole, exclusive, and operative Last Will and Testament.

SECTION II: DECLARATION OF SOUND MENTAL HEALTH AND CAPACITY

I declare that I am executing this Will in full possession of my mental faculties and understanding. I fully comprehend the nature, extent, and value of all my movable and immovable assets, and the natural claims of those persons who are the lawful objects of my affection and bounty.

SECTION III: DECLARATION OF OWNERSHIP, LEGITIME AND MATRIMONIAL MOIETY

I declare that the properties and assets described in this Will comprise my separate estate and my undivided fifty percent moiety (meação) in the community assets (bens comuns) governed under Section 219 of Goa Act 23 of 2016. In strict compliance with substituted Section 83 of the Goa Succession Act (as substituted by the Goa Succession, Special Notaries and Inventory Proceeding (Amendment) Act, 2023 — Goa Act 35 of 2023), I expressly recognize the mandatory fifty percent collective legitime (quota legítima) reserved for my surviving descendants, and affirm that the testamentary bequests herein are made exclusively out of my lawful fifty percent disposable quota (quota disponível). In accordance with Section 82 of the Act, this instrument preserves my surviving spouse's preferential statutory right of habitation in the family dwelling house and the use of household movables.

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

SECTION IV: APPOINTMENT OF EXECUTOR AND CHARGES ON INHERITANCE

I hereby nominate, constitute, and appoint Advocate Francis Xavier Pereira as the sole Executor of this my Last Will and Testament, conferring full authority to represent my estate, manage assets, and assent to bequests. In accordance with Section 45 of Goa Act 23 of 2016, my estate answers for the charges on inheritance in statutory order: first, funeral and last-rites expenses according to my station in life; second, executorship and management burdens, including notarial, inventory, and judicial administration expenses; and third, enforceable debts of the deceased. Pursuant to Section 46 of the said Act, inheritance creditors hold absolute statutory priority over all legatees, and all enforceable debts of my estate shall be satisfied in full prior to the delivery or satisfaction of any bequest under this Will.

SECTION V: SCHEDULE OF ASSET BEQUESTS AND ALLOCATIONS

Asset Number one [Residential Flat]: Flat 402, Borda Heights (Estimated Value: rupees sixty lakh).

• Share of fifty percent bequeathed to Kevin Fernandes (Son).

SECTION VI: ASSET-SPECIFIC NOMINATION AND JUDICIAL PRECEDENTS

(a) Statutory Beneficial Nominees in Life Insurance: In accordance with Section 39(7) of the Insurance Act, 1938 (as amended by the Insurance Laws (Amendment) Act, 2015), which modified the baseline rule laid down in Sarbati Devi v. Usha Devi (1984 1 SCC 424), where any life insurance policy taken on my life nominates my spouse, child, or parent, such nominees are recognized by statute as 'Beneficial Nominees' entitled to beneficially receive and own the policy proceeds. The bequests in this Will stand harmonized with and confirm said statutory beneficial entitlement. Policies under Section 6 of the Married Women's Property Act, 1874 remain preserved as statutory trusts for the benefit of the named wife and children to the exclusion of all other creditors.

(b) Custodial Nominees in Bank Deposits: Under Section 45ZA of the Banking Regulation Act, 1949 and binding Supreme Court precedent in Ram Chander Talwar v. Devender Kumar Talwar (2010 10 SCC 671), nomination in respect of my bank accounts and fixed deposits operates exclusively as a statutory discharge mechanism for the banking institution. Such nominees hold the funds purely as fiduciary custodians in trust for the testamentary beneficiaries named under this Will, and the beneficial ownership shall devolve strictly as directed herein.

(c) Fiduciary Custodians in Demat Securities & Corporate Holdings: Under Section 72 of the Companies Act, 2013, the Depositories Act, 1996, and the authoritative decision of the Supreme Court in Shakti Yezdani v. Jayanand Jayant Salgaonkar (2023 SCC OnLine SC 1679), nomination in respect of shares, Demat holdings, and mutual fund units does not confer beneficial ownership or create a third line of succession. Any nominee receiving such securities does so strictly as a fiduciary trustee and custodian for the beneficial legatees designated under

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

this Will.

(d) Public Provident Fund (PPF): Governed by the Government Savings Promotion Act, 1873 and the Public Provident Fund Scheme, 2019. Under Paragraph 14 of the PPF Scheme, 2019, on the death of the account holder, the account shall be closed and the balance deposited paid to the nominee or legal heir in accordance with statutory procedures, and the beneficial rights under this Will shall govern the entitlement of such proceeds.

SECTION VII: RESIDUARY ESTATE AND SIMULTANEOUS DEATH PRESUMPTION

Any other property, asset, claim, or investment belonging to me at my demise not specifically detailed herein (comprising my entire residuary estate) shall devolve rateably among my surviving primary beneficiaries (Kevin Fernandes, Maria Fernandes) in equal shares. In the event of simultaneous demise in a common calamity where the order of death cannot be established, simultaneous death is presumed pursuant to Section 7 of the Goa Succession Act, 2012, with no inter-se transmission of property between such deceased persons.

SECTION VIII: TESTAMENTARY TRUST FOR MINOR BENEFICIARIES

Where any beneficiary's entitlement vests while below eighteen years of age, their share shall be held in trust by the designated Testamentary Trustee under the Indian Trusts Act, 1882, with investment powers strictly restricted pursuant to Section 20 of said Act to securities authorised by this testamentary instrument or specified by the Central Government by official notification, prioritizing capital preservation, with mandatory annual accounts rendered.

ATTESTATION: ATTESTATION BY TWO CREDITWORTHY WITNESSES

Signed, published, and declared by the Testator as his Last Will and Testament, in our continuous presence, who at his request, in his presence, and in the presence of each other, all being present at the same time, have subscribed our names as attesting witnesses. We confirm that we are creditworthy witnesses possessing legal capacity, of known credit and identity, and are neither beneficiaries nor spouses of beneficiaries under this instrument.

WITNESS 1: _____ WITNESS 2: _____

Full Name: _____ Full Name: _____

Address: _____ Address: _____

Date & Place: _____ Date & Place: _____

SPECIAL NOTARY RECORD: SPECIAL NOTARY RECORD OF OPEN WILL (SECTION 333(3)–(8))

Pursuant to Section 333(3) of the Goa Succession, Special Notaries and Inventory Proceeding Act, 2012, on this date, personally appeared before me, the undersigned Special Notary for the State of Goa, the Testator above-named,

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____

together with two creditworthy witnesses known to me, and presented this instrument, declaring it to be his Last Will and Testament.

Pursuant to Section 333(4) of the Act, I, the Special Notary, have read this Last Will and Testament aloud to the Testator in the simultaneous presence of the said two creditworthy witnesses, and the Testator thereupon confirmed and ratified all the dispositions herein contained.

Section 333(8) Language Verification: Verified that this Open Will is drawn in a permitted official language. (If tendered in an unauthorized language, Section 333(8) statutorily mandates rejection and execution via Public Will).

Notarial Administrative Note: Pursuant to Section 333(7), original printed open wills are periodically bound into books of not more than two hundred sheets by the District Special Notary, with certified photostat copies retained.

Book of Open Wills Entry: Volume: _____ Page: _____ Entry: _____

Special Notary Registration Number: _____ Date: _____

Special Notary Office Jurisdiction: Margao / Panaji / Mapusa, State of Goa.

Total Certified Sheets: _____ (without unauthenticated interlineations).

Official Seal & Signature of Special Notary: _____

Passport Photograph of Testator

(Special Notary cross-signature & certification Sec 333(5))

[Testator Sig]: _____ [Witness 1]: _____ [Witness 2]: _____